

Smt. Khushbu Gupta vs Arjun Gupta on 19 September, 2024

1/4

2024:CGHC:36906

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

TPC No. 46 of 2024

Smt. Khushbu Gupta W/o Arjun Gupta Aged About 28 Years Resident Of Behind
Om Loge, Subhash Market, Bhilai, Police Station Khursipar, Tahsil And District Durg
(C.G.)

... Petitioner

Versus

Arjun Gupta S/o Late Jageshwar Gupta Aged About 33 Years Resident Of
Kunjnagar, Motisagar Para Ward No. 07, Seetamani Korba, Tahsil And District
Korba (C.G.)

... Respondent

For Petitioner : Mr. Praveen Dhurandhar, Advocate.

For Respondent : Mr. Arvind Prasad, Advocate.

(Hon'ble Mr. Justice Naresh Kumar Chandravanshi) Order on Board 19/09/2024 Heard.

1. Petitioner/wife has preferred this transfer petition under Section 24 of the Civil Procedure Code, 1908 (henceforth 'CPC') for transfer of Civil Suit No. 2-A / 2024 (Arjun Gupta Vs. Smt. Khushbu Gupta) pending before the Family Court, Korba, District Korba to the Family Court, Durg.

2. Learned counsel appearing for the petitioner /wife would submit that marriage between petitioner/wife and respondent/husband was solemnized on 19.05.2024 as per Hindu rites and rituals. Thereafter, they have been blessed with two male children, aged about 7 years & 5 years, respectively. After sometime of the marriage, due to ill relation developed between the parties, the petitioner / wife is residing at Durg along with her maternal uncle & aunt (wekek ,oa ekeh). He would further submit that petitioner-wife has filed an application under Section 125 of the Cr.P.C. seeking maintenance, which is pending as MJC Case No. 1043 / 2023 before the Family Court Durg and she has also filed domestic violence case bearing MJC Case No. 828 / 2023 at Durg Court, but respondent / husband has filed an application under Section 5 (Clause 2c) read with Section 12(1)(B) of the Hindu Marriage Act before the Family Court, Koba, District Korba against the wife just to harass her. Furthermore, distance between Durg to Korba is about 260 kms., the petitioner is housewife and she has no source of income, therefore, it would be very difficult for her to travel such

long distance i.e. 520 kms to and fro to attend the court proceeding at Korba. It is further submitted since two cases filed by petitioner/wife are pending against the respondent / husband at Durg Court, therefore, it would not be inconvenient for the respondent / husband to attend the court proceeding at Durg, if the civil suit No. 02-A/2024 filed by him is transferred from Family Court, Korba to Family Court, Durg, therefore, it is prayed that Civil Suit No.2-A /2024 filed by respondent / husband in the Family Court, Korba may be transferred to Family Court, Durg.

3. Per contra, learned counsel for the respondent / husband would submit that petitioner / wife has left respondent's /husband company without any sufficient reason, even their both children are residing with respondent / husband at Korba; further the petitioner / wife is deaf (cgjk), therefore, transferring the suit filed by respondent /husband may cause immense problem to him, as such, the instant transfer petition is liable to be dismissed.

4. I have heard learned counsel appearing for the parties and perused the material available on record.

5. The ground taken for the transfer of civil suit is that two cases filed by the petitioner /wife in respect of both the parties are pending before the Court at Durg, therefore, it would be convenient for both the parties, if application under Section 5 (Clause 2c) read with Section 12(1)(B) of the Hindu Marriage Act filed by respondent / husband before the Family Court, Korba, be transferred to Family Court, Durg, rather it would not cause any difficulty for the husband, as he has to go in the hearing of two other cases filed by the petitioner/wife in the Court at Durg.

6. In the matter of N.C.V. Aishwarya Vs. A.S. Saravana Karthik (2022 SCC Online SC 1199), their Lordships of the Supreme Court has held as under:-

"9. The cardinal principle for exercise of power under section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio-economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

7. Hon'ble Supreme Court in the matter of Sumita Singh -v- Kumar Sanjay and another [(2001) 10 SCC 41] has observed that if husband files suit against wife, then convenience of wife must be looked into. Hon'ble Supreme Court in the matter of Rajani Kishor Pardeshi -v- Kishore Babulal Pardeshi [(2005) 12 SCC 237] has observed that the convenience of wife is to be preferred over the convenience of the husband.

8. Considering the facts situation of the case, which has been observed in preceding paragraphs of his order and in light of the principles of law laid down by the Apex Court in aforecited cases; it is a fit case for transfer of the civil suit, as prayed for.

9. Consequently, the instant transfer petition is allowed. It is ordered that the Civil Suit No. 2-A / 2024 (Arjun Gupta Vs. Smt. Khushbu Gupta) pending before the Family Court, Korba, District Korba be transferred to the Family Court, Durg for its trial/ disposal in accordance with law. The Judge, Family Court, Korba is directed to transmit the record of the above case to the court of Judge, Family Court, Durg.

10. In view of above order, pending interim application, if any, stands disposed of. No order as to costs.

Sd/-

(Naresh Kumar Chandravanshi) Judge Amit AMIT by AMIT KUMAR DUBEY KUMAR Date:

DUBEY 2024.09.27 12:50:37 +0530